

HOUSE BILL 1294

By Powell

AN ACT to amend Tennessee Code Annotated, Title 4,
Chapter 3; Title 40 and Title 41, relative to
correctional institutions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 3, Part 6, is amended by
adding the following new section:

(a) As used in this section:

(1) "Book vendor" means a nonprofit organization that provides books
and educational materials donated by authors, publishers, and other individuals
to state inmates;

(2) "Contraband" means an item that is not permitted by law, or that is
either prohibited or not specifically authorized by the department or correctional
institution policy;

(3) "Correctional institution" means a facility under the authority of this
state, a county, a municipal government, or a privately managed facility that has
the power to detain or restrain, or both, a person under the laws of this state;

(4) "Department" means the department of correction or the
commissioner of correction;

(5) "Feature" or "features" means the display or depiction of nudity or
sexually explicit conduct in books or other printed materials on a routine or
regular basis or the promotion of such depictions in individual one-time issues.
"Feature" or "features" does not include the display or depiction of nudity

illustrative of medical, educational, or anthropological content in books or other publications;

(6) "Nudity" means depictions where genitalia or female breasts are exposed. "Nudity" does not include publications containing nudity illustrative of medical, educational, or anthropological content;

(7) "Printed materials" means books, publications, magazines, newspapers, periodicals, circulars, catalogues, or clippings that are portions of such materials, delivered by a postal or other delivery service to correctional institutions by book vendors; and

(8) "Sexually explicit" means depictions of actual or simulated sexual acts, including sexual intercourse, oral sex, or masturbation, or material that promotes itself based on such depictions on a routine or regular basis or in individual one-time issues.

(b)

(1) Notwithstanding any department policy or rule to the contrary, a correctional institution shall not deny the dissemination or availability of printed materials from book vendors to state inmates housed in such institutions except as authorized in subsection (c).

(2) A state inmate who is adversely affected by a decision of the department pursuant to this section may petition the department for a hearing to be held in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, part 3.

(c) Incoming printed materials may be determined by the department to be a threat to the security of the correctional institution and returned to the sender if the

institution can establish by clear and convincing evidence that the dissemination or availability of such materials to state inmates could:

- (1) Be an attempt to incite violence based on race, religion, sex, creed, or nationality;
- (2) Advocate, facilitate, or otherwise present a risk of lawlessness, violence, anarchy, or rebellion against government authority, institution staff, or other inmates;
- (3) Be an attempt to incite disobedience toward law enforcement officials or institution staff;
- (4) Be an attempt to give instructions for the manufacturing or use of intoxicants, weapons, explosives, drugs, drug paraphernalia, other unlawful articles or substances, or other items deemed as contraband;
- (5) Contain plans to escape, unauthorized entry into the institution, or information or maps which might aid an escape attempt by an inmate;
- (6) Contain information relating to security threat group activity or use of codes or symbols associated with security threat groups; or
- (7) Be sexually explicit material or material that features nudity, which by its nature or content poses a threat to the security, good order, or discipline of the institution, or facilitates criminal activity.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.